

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

**EDWARD WATERMAN, a Permanent Certificated Employee,
Moving Party,**

and

**LONG BEACH SCHOOL DISTRICT,
Responding Party.**

OAH No. 2025070057

**ORDER GRANTING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Ji-Lan Zang, Administrative Law Judge, Office of Administrative Hearings (OAH),
State of California, heard this matter by videoconference on July 18, 2025.

Arthur Four, Attorney at Law, represented moving party Edward Waterman
(Employee).

Lauren Ruvalcaba, Attorney at Law, represented responding party Long Beach
School District (District).

District has suspended Employee without pay pending the outcome of its action to dismiss Employee under Education Code section 44939. The basis for the suspension is immoral conduct. In his motion (Motion), Employee seeks an order for the immediate reversal of his suspension. District opposes the Motion and has filed an opposition (Opposition). Employee also filed a reply to the Opposition.

Counsel for both parties presented oral argument at the motion hearing. The parties did not dispute that the Statement of Charges (SOC), attached as an exhibit to the Motion, is the operative pleading for this proceeding.

Motion for Immediate Reversal of Suspension

A school district may immediately suspend without pay a permanent certificated employee charged with immoral conduct. (Ed. Code, § 44939, subd. (b).) A suspended employee may file a motion for immediate reversal of the suspension with OAH. (Ed. Code, § 44939, subd. (c)(1).) An administrative law judge's review of the suspended employee's motion shall be "limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (Ed. Code, § 44939, subd. (c)(1).)

Although the administrative law judge must accept well-pleaded facts in the SOC as true, the administrative law judge need not accept contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Conclusory characterizations of conduct as intentional, willful, or fraudulent are "patently insufficient." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where reading the allegations reveals the existence of an affirmative defense, the complaining party must plead around the defense by alleging specific facts that would avoid the apparent defense. (*Blank, supra*, 39 Cal.3d at p. 318.)

SOC

During the relevant period, Employee was employed by District as a second-grade teacher at Lincoln Elementary School. The SOC alleges Employee engaged in immoral conduct in violation of Education Code sections 44932, subdivision (a)(1), and 44939; committed unprofessional conduct in violation of Education Code section 44932, subdivision (a)(2); performed unsatisfactorily in violation of Education Code section 44932, subdivision (a)(5); and his unfitness for service is evident under Education Code section 44932, subdivision (a)(6).

In support of its charge of immoral conduct, District alleges the following:

6. On or about December 1, 2021, [Employee] engaged in immoral and unprofessional conduct and failed to perform [his] job duties in a satisfactory manner by telling one of [his] second grade students that [he] wanted to hit him. [Employee] admitted saying to student V.V., "I wish I could hit you," which resulted in V.V. feeling threatened and afraid to go to school. [Employee was] notified that [his] conduct was unprofessional, negatively impacted [his] relationship with V.V., and the classroom community, and violated the District's Code of Ethics.

[¶] . . . [¶]

7. On or about March 14, 2022, [Employee] engaged in additional immoral and unprofessional conduct, failed to perform [his] job duties in a satisfactory manner, and failed to comply with [his] updated classroom management plan

by yelling at a student, failing to support district mandates, neglecting to plan and execute lessons, and failing to maintain [his] classroom in a tidy and organized manner. [Employee's] immoral, unprofessional, and unsatisfactory conduct and performance includes but is not limited to the following:

A. [Employee] publicly screamed at a female student in the classroom while [his] other students sat quietly on the carpet. [Employee] then noticed Principal Caroline Nemea in the classroom, changed [his] tone, and asked the student, "Do you understand? Are you okay?"

(SOC, pp. 2-3.)

District contends the foregoing conduct warrants Employee's immediate dismissal without pay. Employee contends District failed to plead sufficient facts to establish immoral conduct.

Immoral Conduct

"[T]he term 'immoral conduct' in [Education Code] section 44932, subdivision (a)(1) 'stretch[es] over so wide a range' of conduct that it 'embrace[s] an unlimited area of conduct.'" (*Crawford v. Commission on Professional Competence of Jurupa Unified School Dist. (Crawford)* (2020) 53 Cal.App.5th 327, 337, quoting *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224-225.) Courts have defined immoral conduct in school settings as conduct "'hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency,

depravity, dissoluteness; or as wil[ly]ful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.'" (*Board of Ed. of San Francisco Unified School Dist. v. Weiland (Weiland)* (1960) 179 Cal.App.2d 808, 811, quoting *Orloff v. Los Angeles Turf Club* (1951) 36 Cal.2d 734, 740.)

Immoral conduct also "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.'" (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.) "Thus, the term must be 'considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public . . . more specifically in this case, conduct which is hostile to the welfare of the school community.'" (*Crawford, supra*, 53 Cal.App.5th at p. 337, quoting *Morrison, supra*, 1 Cal.3d at p. 224.)

Disposition

In this case, District alleges Employee's conduct during the incidents on December 1, 2021, and March 14, 2022, constitutes immoral conduct. During oral argument, the District cited *Crawford, supra*, 53 Cal.App.5th 327, in support of its contention that Employee's conduct falls within the meaning of "immoral conduct" under Education Code sections 44932, subdivision (a)(1), and 44939, subdivision (b).

However, the facts in this case are readily distinguishable from those in *Crawford*. In *Crawford*, a high school counselor was dismissed, based on immoral conduct, for posting on Facebook several derogatory comments towards immigrants, including suggestions that immigrants were "dirty." (*Crawford, supra*, 53 Cal.App.5th at

p. 332.) On appeal, the Court of Appeal found that the district received numerous complaints about the counselor's comments and that in a school comprised of 91 percent Latino students, several students expressed a loss of confidence in the counselor. (*Id.* at pp. 341-342.) Thus, the counselor's comments constituted immoral conduct because her conduct had adverse effects "on her professional reputation, her ability to counsel students effectively, and her relationship with [the school] generally." (*Id.* at p. 340.)

Here, according to the SOC, in December 2021, Employee allegedly told student V.V. that he wished he could hit him, making that single student feel threatened. In March 2022, Employee allegedly screamed at a female student in the presence of other students. The adverse effects of this action, at worst, affected only the students in the same classroom. The SOC does not allege, as in *Crawford*, that Employee's conduct had any effects on his professional reputation, his ability to teach the students effectively, and his relationship with the school generally. In fact, according to the SOC, Employee continued to teach at the school until at least March 2025. Under these circumstances, the two alleged incidents, consisting of Employee's telling V.V. that he wished he could hit him and Employee screaming at a female student in front of other students, do not rise to "conduct hostile to the welfare of school community," constituting immoral conduct. (*Crawford, supra*, 53 Cal.App.5th at p. 337, quoting *Morrison, supra*, 1 Cal.3d at p. 224.)

In sum, based on the allegations in the SOC, Employee's actions are certainly inappropriate, especially considering that he is a second-grade elementary school teacher. His actions also may reflect poor judgment, unfitness for service, or unprofessional conduct, but, without additional facts, those acts are not "indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless

conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Weiland, supra*, 179 Cal.App.2d at p. 811.)

All arguments made by counsel in their briefs and at oral argument have been considered. The facts pleaded in the SOC, if true, are not sufficient to support a claim against Employee for immoral conduct and therefore cannot form a basis for immediate suspension without pay under Education Code section 44939, subdivision (c)(1). Accordingly, the Motion for Immediate Reversal of Suspension is granted.

ORDER

The motion by Edward Waterman for immediate reversal of his suspension without pay is granted.

DATE: 07/24/2025



JI-LAN ZANG

Administrative Law Judge

Office of Administrative Hearings